

		does not possess, and cannot reasonably obtain, needed evidence” (<i>Id.</i> at 854.) Defendant has satisfied its burden of proving Plaintiffs cannot establish causation. Plaintiff’s prior medical records reveal voluminous preexisting complaint including mental and mobility issues. (Galvin Decl., Ex. E.) She needed a walker and is noted to be forgetful and have unsteady gait and generalized weakness. (Galvin Decl., Ex. E.) Plaintiff is noted to have significant dementia the less than 3 weeks after the fall and stated she is extraordinarily active. (Galvin Decl., Ex. G.) Plaintiff fell again in April 2019 attempting to stand from her toilet injuring her left ankle and hitting her head. (Galvin Decl., Ex. F.) Finally, the death certificate lists only cardiopulmonary arrest and senile degeneration of the brain as the causes of death. (Galvin Decl., Ex. H.) “The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony.” (<i>Jones v. Ortho Pharmaceutical Corp.</i> (1985) 163 Cal.App.3d 396, 402 (cleaned up).) Plaintiffs have failed to provide sufficient evidence to support causation. Dr. Csuka’s statement that the fall and death are timely connected is insufficient to show there is a reasonable medical probability the events are causally linked. Thus, the burden shifts to Plaintiffs to prove there is an issue of material fact. However, Plaintiffs have not opposed the motion and, thus, have not met their burden. Accordingly, Defendants’ Motion for Summary Judgment is granted.
18	24-01416662 <i>Fallor vs. Capistrano Beach Care Center, LLC</i>	Motion to Appear Pro Hac Vice The application of attorney Thomas W. Arbon to appear pro hac vice as counsel for Plaintiff Beulah Fallor in this matter is hereby GRANTED pursuant to California Rules of Court, rule 9.40.